



ROPENVIROS

BOOK OF ABSTRACTS

“Population and Environment:
Challenges and Perspectives”
International Scientific Conference





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Legislative support for regulating social impacts of the extractive industry

Resource extraction induces a range of positive (economic progress) and negative impacts at the local, regional and even national level. The most dominant negative aspects include environmental degradation, as well as diverse social & community consequences of the development - forced resettlement, loss of agricultural land, construction of boom towns and company settlements, endangered indigenous rights, impoverishment, human rights abuse, forced and child labour, endangered health, gender dimension, physical cultural resources, and workforce migration. All those harmful consequences are very complex and demanding to direct and mitigate. Development of proper international and national legislation, along with institutional solutions and development planning, plays a crucial role in this regard. This research will analyze the international legislation regulating social impacts of resource extraction, including both hard and soft laws. Further, this will be followed by a critical analysis of the relevant national legislation of the Republic of Serbia, including the key strategies and national laws. The primary goal is to identify current issues and inconsistencies, and to propose improvements that would promote more sustainable and socially responsible development in mining regions. The findings related to Serbia indicate the following: (a) integration of international norms and standards, including the adoption of *aquis communautaire*, is incomplete; (b) social impacts are briefly acknowledged however without detailed mitigation strategies (a superficial approach); (c) several important strategies are outdated or have been abolished without suitable replacements; and (d) while environmental issues are prioritized, other social impacts are inadequately addressed or inconsistently considered. The introduction of a comprehensive law to regulate mining development would address these hierarchical and horizontal inconsistencies, fill gaps, and incorporate overlooked aspects, such as the social impacts of mining activities.

Keywords: Mining, legislation, social impacts, spatial planning, Serbia